IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Amalgamation*

CA (CAA)/55(CHE) 2022

BNP PARIBAS GLOBAL SECURITIES OPERATIONS PRIVATE LIMITED
CIN No. U72900TN2008PTC069413
A Company Incorporated Under the Companies Act, 1956,
Having its Registered Office at
Centre Point II, 8, Ekkaduthangal Road,
Thiru Vi Ka Industrial Plots,
Guindy, Chennai-600 032,

... Applicant / Transferor Company

Order Pronounced on ***20th July 2022***

CORAM

Justice (Retd.) S. RAMATHILAGAM, MEMBER (JUDICIAL)
SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant: Suhirth Pathasarathy, Advocate

ORDER

Per: **Justice (Retd.) S. RAMATHILAGAM, MEMBER (JUDICIAL)**

Under consideration is CA (CAA)/55/CHE/2022 filed by the Applicant Company, namely **BNP PARIBAS GLOBAL SECURITIES AND OPERATIONS PRIVATE LIMITED** ("Transferor Company") under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies

(Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies. The said Scheme is also appended as "Annexure – A" to the typed set of papers filed along with the Application.

2. The Applicant Company in this Company Application has sought for the following reliefs;

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
TRANSFEROR COMPANY	To dispense with	NIL	To dispense with

3. From the certificate of incorporation filed, it is evident that the Transferor Company is a Private limited company incorporated under the provisions of Companies Act, 1956 on 25.09.2008. The Authorized Share Capital of the Transferor Company is ₹10,00,00,000 (Rupees Ten Crore Only) consisting of 1,00,00,000 Equity Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Transferor Company is ₹7,44,50,000 (Rupees Seven Crore Forty Four Lakhs Fifty Thousand Only) consisting of 74,45,000 Equity Shares of Rs.10/- each.

4. It is averred in the Application that the Transferee Company falls within the jurisdiction of ROC, Mumbai and has filed an

Application under Section 230-232 of the Companies Act, 2013 before NCLT, Mumbai Bench.

5. An affidavit in support of the above application sworn for and on behalf of the Applicant Company is placed as Page No 35-36 of the Application typeset. The Affidavit is sworn by Mr. Siva Prasad Venkatachaliah as the Authorized representative of the Applicant Transferor Company. It is also represented that the Registered office of the Applicant Company is situated within the jurisdiction of Registrar of Companies, Chennai.

6. BNP PARIBAS GLOBAL SECURITIES OPERATIONS PRIVATE LIMITED (TRANSFEROR COMPANY)

(i) There are **two (2)** Equity Shareholders, the Certificate issued by the Chartered Accountant the list of Equity Shareholders is placed as **Annexure F** of the typed set filed with the application and their respective consent affidavits are placed as **Annexure G (Colly)** Application typeset and have sought dispensation with holding of meeting.

(ii) There are NIL Secured Creditors and the certificate issued by the Chartered Accountant to this effect is placed as **Annexure H** of the typed set filed along with the Application.

(iii) There are **37 (Thirty Seven)** Unsecured Creditors and the certificate issued by the Chartered Accountants to this effect is placed at **Annexure I** of the typed set filed with the application and their respective consent affidavits amounting to total credit value of 91.60% is placed as **Annexure J (Colly)** of the Application typeset and have sought dispensation with holding of meeting.

8. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

9. The Applicant Companies has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Annual Accounts for the year ended 31.03.2021.

10. The Board of Directors of the Applicant Companies vide meeting held on 23.05.2022 had unanimously approved the proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the applicant companies.

11. The Appointed date as specified in the Scheme is 01.04.2023.

12. The Statutory Auditors of the Transferee Company have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013.

13. Taking into consideration the application filed by the Applicant Company and the documents filed therewith as well as the position of law, this Tribunal propose to issue the following directions: -

IN RELATION TO THE TRANSFEROR COMPANY:

(i) **With respect to Equity shareholders:**

Since it is represented by the Transferor Company that there are **2 (Two)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(ii) **With respect to Secured Creditors:**

Since it is represented by the Transferor Company that there is **NIL** Secured Creditor in the Company, hence the necessity of Convening, holding and conducting a meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Since it is represented by the Transferor Company that there are **37 (Thirty Seven)** Unsecured Creditors the Company whose consents by way of Affidavits amounting to the total credit value of 91.60% have been obtained and the same are placed on record. Hence, the necessity of convening and holding the meeting is ***dispensed with.***

14. Accordingly, the Application stands **allowed** and the Applicant Companies are directed to file the Application for the Second Motion within a period of fourteen (14) days from the date of receipt of this Order.

-Sd-

SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-

Justice (Retd.) S. RAMATHILAGAM,
MEMBER (JUDICIAL)

Vinita Varshini K